

**BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

PCE: 2010-0002

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF SHERRY L. FORSYTH, LPC NO. 4906,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Sherry L. Forsyth, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor in the State of Colorado on February 14, 2008 and has been so licensed from that date to the present.
3. It is the intent of the parties and the purpose of this Order to provide for a full and final resolution of PCE 2010-0002. This Order constitutes the entire agreement between the parties, and there are no other agreements or promises, written or oral, that modify, interpret, construe or affect this Order. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about November 3, 2006, Respondent entered into a Consent Agreement and Order with the Arizona Board of Behavioral Health Examiners (2006 Arizona Order);
 - b. By virtue of the 2006 Order, Respondent acknowledged, *inter alia*, the failure to maintain a viable and appropriate treatment plan for a client, the failure to maintain legible comprehensive progress notes of her treatment with the client, and acceptance of the client's catering services in lieu of payment for therapy;
 - c. On or about August 30, 2007 Respondent entered into a Stipulation and Final Agency Order with the Board (2007 Colorado Order);
 - d. On or about February 6, 2009, Respondent entered into a Consent Agreement and Order with the Arizona Board of Behavioral Health Examiners regarding her license for the practice of counseling in the state of Arizona (2009 Arizona Order);
 - e. Respondent violated the 2007 Colorado Order by failing to report the 2009 Arizona Order, and the violations on which the 2009 Arizona Order was based, to the Board.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that the above conduct is a violation of §12-43-222(1)(b), §12-43-224(8) and (9), and Rule 8 of the Licensed Professional Counselor Examiners Rules. This Stipulation and Order supersedes the 2007 Colorado Order.

PERIOD OF CLINICAL SUPERVISION

6. Respondent's license to practice professional counseling in the State of Colorado is hereby placed under clinical supervision for five years commencing from the date this Order is fully executed. During the period of clinical supervision, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of clinical supervision is tolled during any time that Respondent is not practicing in this state, and such period of clinical supervision shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of clinical supervision will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being monitored by a clinical supervisor, and is in full compliance with all terms of this Order.

9. If, at the end of the period of clinical supervision, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of clinical supervision. Request for termination of clinical supervision must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of clinical supervision.

CLINICAL SUPERVISOR

10. During the term of clinical supervision, Respondent's practice shall be monitored by a clinical supervisor. Respondent is currently being supervised by John Eckenwiler pursuant to the 2007 Colorado Order. Respondent and Mr. Eckenwiler shall enter into a written contract for supervision pursuant to the terms of this Order.

11. If Mr. Eckenwiler should cease, for any reason, to be Respondent's clinical supervisor, then Respondent shall submit, in writing, the names of three proposed clinical supervisors for the Board's approval. Respondent shall include an approved practice monitor application from each potential clinical supervisor, with attached curriculum vita or resume. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the clinical supervisor have a minimum of five years experience and have not been subject to professional discipline.

c. The clinical supervisor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. After the Board's written approval of a clinical supervisor pursuant to paragraph 11 above, Respondent and the clinical supervisor shall enter into a written contract for monitoring. Respondent shall not begin practice in Colorado as a professional counselor until such time as the Board approves the proposed clinical supervisor and the Respondent and the clinical supervisor have entered into a written contract for supervision.

13. Respondent's clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, a copy of the complaint and any responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

14. The clinical supervisor shall conduct a practice evaluation during the first month of supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

15. Should the Board determine, from the clinical supervisor's evaluation, that Respondent cannot practice any part of her practice with skill and safety for clients, in accordance with generally accepted standards of practice, or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, that she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients and in accordance with generally accepted standards of practice. Once Respondent satisfies the Board that she is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. Clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the clinical supervisor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her clinical supervisor must review and discuss each of Respondent's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the period of clinical supervision is completed.

18. If at any time the Board has questions or concerns regarding the monitoring, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's

concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at a Board meeting.

19. If, at any time, the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

20. Respondent shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If, for any reason, the clinical supervisor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, the name of a new proposed clinical supervisor to the Board within 30 days.

21. Respondent or the clinical supervisor may terminate the monitoring relationship upon written notice to the other and to the Board, not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

22. During the period of probation, Respondent must successfully complete at least 20 hours each year of Board-approved professional continuing education courses in areas to include: self-care; therapeutic techniques, spirituality and psychotherapy, legal/ethical issues specifically related to the practice of professional counseling, and record-keeping. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

EARLY TERMINATION

23. After successful completion of no less than three years of clinical supervision, and upon recommendation of Respondent's clinical supervisor, Respondent may petition for early termination of clinical supervision. Prior to submitting a petition for early termination to the Board, Respondent agrees to undertake a Board-approved independent practice evaluation to determine her fitness to practice with skill and safety to clients. The parties agree that the Board's decision regarding such a petition shall be made on the basis of the Board-approved independent practice evaluation and the clinical supervisor's recommendation. The parties agree that the Board's decision regarding such a petition shall be made at the sole discretion of the Board. Respondent hereby waives the right to appeal the Board's decision on this issue.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with the practice evaluation, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

27. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her clinical supervisor to provide records and information obtained in the normal course of clinical supervision to the Board if the clinical supervisor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice, or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent explicitly waives her right to maintain confidentiality of records or information provided to the clinical supervisor in the normal course of clinical supervision, if the clinical supervisor determines that she is not practicing professional counseling in accordance with generally accepted standards of practice, or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

28. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of her change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel, and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. Respondent shall obey all state and federal laws while this Order is in effect.

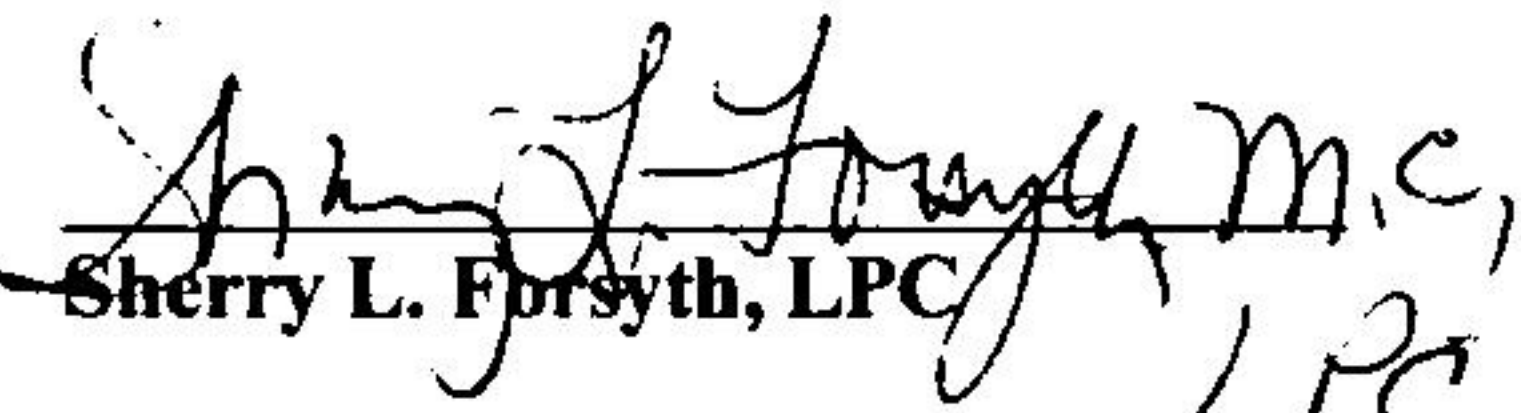
34. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

35. This Order shall become effective when accepted and signed on behalf of the Board.

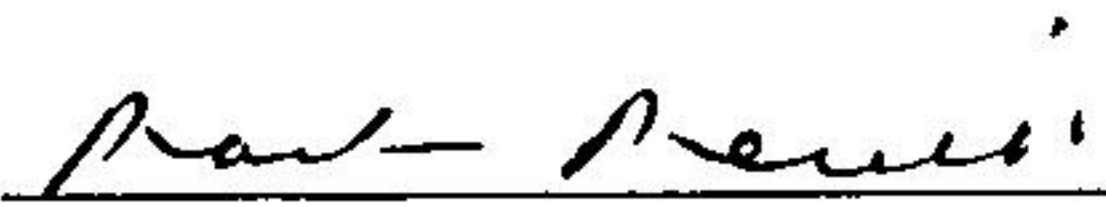
36. This Order shall be admissible as evidence at any hearing held before the Board.

37. This Order shall be a public record in the custody of the Board.

RESPONDENT


Sherry L. Forsyth, LPC

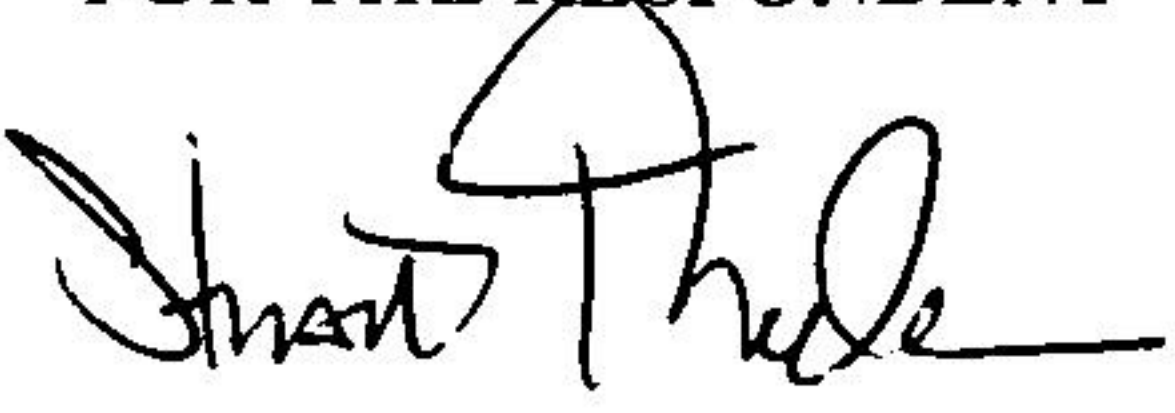
**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**


Mark Merrill
Acting Program Director

Effective Date: This 30th day of
December, 2010.

APPROVED AS TO FORM:

FOR THE RESPONDENT



Stuart Theodore, #31512
Attorney at Law

62 South Sherman St.
Denver, CO 80209
Telephone (303) 882-1050

E-mail: Theo71@mindspring.com

FOR THE BOARD



Laurie Rottersman, #11910
Assistant Attorney General
Business and Licensing Section

Attorneys for State Board of Board of Licensed
Professional Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, CO 80203
Telephone: (303) 866-5148
FAX: (303) 866-5395
E-mail: laurie.rottersman@state.co.us